

25PSCV04563 25PSCV04563

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Case Number: 25PSCV04563 Hearing Date: July 29, 2026 Dept: 6

CASE

NAME: Rheitty

Teng v. Alliance Environmental Group, LLC, et al.

Defendants

Alliance Environmental Group, LLC, OPM Services, LLC, Alliance Environmental Holdings, LLC, and Airtek Indoor Air Solutions, LLC's Motion to Stay Action
Pending Hearing on Motion to Compel Arbitration

TENTATIVE

RULING

The Court GRANTS Defendants Alliance Environmental Group, LLC, OPM Services, LLC, Alliance Environmental Holdings, LLC, and Airtek Indoor Air Solutions, LLC's Motion to Stay Action Pending Hearing on Motion to Compel Arbitration. The Court hereby STAYS this action pending the hearing on the motion to compel arbitration. The Court further advances and vacates the February 24, 2027 hearing on the motion to compel arbitration, and will set a new hearing date at the hearing on this Motion to Stay.

Defendants are ordered to give
notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a PAGA employment case. On December 19, 2025, plaintiff Rheitty Teng, individually, and on behalf of other aggrieved employees pursuant to the California Private Attorneys General (Plaintiff) filed this action against defendants

Alliance Environmental Group, LLC, OPM Services, LLC, Alliance Environmental Holdings, LLC, Airtek Indoor Air Solutions, LLC (collectively, Defendants), and Does 1 through 100, alleging one cause of action for violation of California Labor Code § 2698, et seq., including claims for failure to pay overtime, failure to provide meal periods, failure to provide rest periods, failure to pay minimum wages, failure to timely pay wages upon termination, failure to timely pay wages during employment, failure to provide complete and accurate wage statements, failure to keep complete and accurate payroll records, and failure to reimburse necessary business-related expenses.

On June 12, 2026, Defendants moved to stay the action pending the hearing on the motion to compel arbitration. Plaintiff did not oppose the Motion to Stay.

LEGAL STANDARD

If
an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

(Code Civ.
Proc., § 1281.4.)

DISCUSSION

Defendants
seek to stay this action pending the hearing on Defendants' motion to compel arbitration, previously filed on June 3, 2026, under Code of Civil Procedure section 1281.4, which provides that the court shall stay an action until the court rules on the motion to compel arbitration. Defendants contend that since their motion to compel arbitration is pending, they are entitled to a stay of these proceedings.

The

Court finds a stay would be appropriate. Code of Civil Procedure section 1281.4 explicitly provides that the court shall, upon a party's motion, stay the action pending the court's determination of the application to compel arbitration. (Code Civ. Proc., § 1281.4.) The Court further construes Plaintiff's lack of opposition to this Motion as a concession that Defendants' arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

The Court does note, however, that Defendants' motion to compel arbitration was originally scheduled for August 18, 2026, and that Defendants continued the hearing on their motion to compel arbitration to February 24, 2027, after they filed this Motion to Stay. (See Notice of Continuance (6/12/26).) It is unclear why Defendants needed a six-month continuance, but the Court finds this problematic and will therefore shorten the amount of time for that motion to be heard.

Based on the foregoing, the Court GRANTS Defendants Alliance Environmental Group, LLC, OPM Services, LLC, Alliance Environmental Holdings, LLC, and Airtek Indoor Air Solutions, LLC's Motion to Stay Action Pending Hearing on Motion to Compel Arbitration. The Court hereby STAYS this action pending the hearing on the motion to compel arbitration. The Court further advances and vacates the February 24, 2027 hearing on the motion to compel arbitration, and will set a new hearing date at the hearing on this Motion to Stay.

CONCLUSION

The Court GRANTS Defendants Alliance Environmental Group, LLC, OPM Services, LLC, Alliance Environmental Holdings, LLC, and Airtek Indoor Air Solutions, LLC's Motion to Stay Action Pending Hearing on Motion to Compel Arbitration. The Court hereby STAYS this action pending the hearing on the motion to compel arbitration. The Court further advances and vacates the February 24, 2027 hearing on the motion to compel arbitration, and will set a new hearing date at the hearing on this Motion to Stay.

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